

1 AN ACT relating to designation of special judges.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 26A.020 is amended to read as follows:

4 (1) **(a)** When, from any cause, a judge of any Circuit or District Court fails to attend,
5 or being in attendance cannot properly preside in an action pending in the
6 court, or if a vacancy occurs or exists in the office of circuit or district judge,
7 the circuit clerk shall at once certify the facts to the Chief Justice who shall
8 immediately designate a regular or retired justice or judge of the Court of
9 Justice as special judge.

10 **(b) 1.** If ~~any~~^{either} party files with the circuit clerk his **or her** affidavit that
11 the judge will not afford him **or her** a fair and impartial trial, or will not
12 impartially decide an application for a change of venue, the circuit clerk
13 shall at once certify the facts to the Chief Justice who shall immediately
14 review the facts and determine whether to designate a regular or retired
15 justice or judge of the Court of Justice as special judge.

16 **2. Any person may submit to the Attorney General his or her affidavit**
17 **that the judge will not impartially decide a question of law or a**
18 **constitutional challenge to a statute in a pending civil case or appeal.**
19 **If the Attorney General determines that the affidavit is made in good**
20 **faith and states a prima facie argument that the judge's impartiality**
21 **might reasonably be questioned, the Attorney General shall redact any**
22 **identifying information from the affidavit regarding the requestor and**
23 **submit it to the Chief Justice. If the affidavit contains allegations of a**
24 **defamatory nature, the Attorney General may submit the affidavit**
25 **under seal. The Chief Justice shall promptly review the facts and**
26 **determine whether to designate a regular or retired justice or judge of**
27 **the Court of Justice as special judge.**

- 1 (c) Any special judge~~[-sø]~~ selected under this subsection shall have all the
2 powers and responsibilities of a regular judge of the court.
- 3 (2) A retired justice or judge serving as a special judge shall be compensated as
4 provided by KRS 21A.110.